

26STCV01255 26STCV01255

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Case Number: 26STCV01255 Hearing Date: September 24, 2026 Dept: 510

No.

9 - Ken Shao Xu, et al. v. BMW of North America, LLC

Plaintiffs' Motion to Compel Defendant's

Person Most Qualified Deposition

Plaintiffs

Ken Shao Xu and Kotec Corp. move to compel the deposition of Defendant BMW of North America, LLC's person most qualified. Plaintiffs also seek an order compelling the production of documents in response to their 35 accompanying document requests.

"An

oral deposition shall be scheduled for a date at least 10 days after service of the deposition notice." (Code Civ. Proc., § 2025.270(a).) "The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (Code Civ. Proc., § 2025.280(a).) One may move to compel the deposition of a party who fails to appear at a deposition or proceed with it "without having served a valid objection under Section 2025.410." (Code Civ. Proc., § 2025.450(a).)

Plaintiffs

do not meet their burden of showing they made "a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" (CCP § 2016.040) as required when moving to compel a deposition (CCP § 2025.450(b)(2)). Plaintiffs' counsel's

supporting declaration shows counsel only communicated via email regarding available dates for the deposition. (Enav Decl., ¶¶ 15-18, Ex. 5.) Plaintiffs' counsel states, "On July 1, 2026, after receiving Defendant's objections, Plaintiffs' counsel emailed Defendant's counsel requesting available dates for the deposition of Defendant's PMK. . . . On July 2, 2026, Defendant's counsel offered available dates for the PMK deposition, the earliest of which was February 1, 2027, and the latest of which was April 2, 2027. That same day, Plaintiffs' counsel responded that requiring Plaintiffs to wait approximately eight (8) months for the deposition was unreasonable and requested an earlier date." (Id., ¶¶ 15-16.)

Plaintiffs

have shown no attempt to meet and confer about Defendant's objections to the 19 specific matters of examination and 35 categories of documents requested in the notice of deposition. Plaintiffs' separate statement, meanwhile, spends 41 pages on those disputed issues.

Disposition

Plaintiffs

Ken Shao Xu and Kotec Corp.'s motion to compel the deposition of Defendant's person most qualified is continued to October 26, 2026 at 8:30 AM. The parties are ordered to submit a joint statement on or before October 19, 2026, regarding which specific discovery issues, if any, remain at issue for the Court to decide.